

K Scan AI Terms and Conditions

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Terms Summary

These Terms govern use of the K Scan AI website, mobile application, AI visual-analysis features, beta features, and related services. K Scan AI helps users discover fashion-related visual matches, but AI outputs are probabilistic and third-party retailer transactions remain between you and the retailer. Your privacy is governed by the K Scan AI Privacy Policy, which is incorporated into these Terms.

Welcome to K Scan AI ("K Scan," "K Scan AI," "we," "our," or "us"). These Terms and Conditions ("Terms") govern your access to and use of the K Scan mobile application, website, APIs, AI systems, software, visual commerce tools, Style-Parse(TM) engine, and related products, services, or features (collectively, the "Service").

By accessing, downloading, registering for, or using the Service, including any AI-powered visual analysis functionality, you acknowledge that you have read, understood, and agree to be bound by these Terms and our Privacy Policy. If you do not agree, you may not use the Service.

These Terms form a legally binding agreement between you and K Scan AI.

1. Definitions

Service: The K Scan AI platform, including all mobile applications, websites, APIs, AI systems, Style-Parse(TM) technology, visual commerce systems, and related services.

Style-Parse(TM) Engine: K Scan AI's proprietary visual-analysis and fashion-recognition technology, including computer vision systems, recommendation logic, embeddings, machine-learning workflows, model orchestration systems, and visual-commerce infrastructure.

AI Outputs: Recommendations, styling suggestions, visual matches, product identifications, similarity analyses, commerce-routing results, generated metadata, or other outputs generated through the Service.

User Content: Images, photographs, screenshots, text, styling inputs, profile information, prompts, and other materials uploaded or submitted by users.

Retail Partners: Third-party retailers, affiliate partners, marketplaces, advertisers, brands, or commerce providers linked through the Service.

Trade Dress: The visual appearance and commercial aesthetic of the Service, including layouts, interface systems, interaction patterns, animations, graphics, typography, color systems, and branding treatments.

Beta Features: Features identified as experimental, early access, beta, preview, or pre-release functionality.

2. Acceptance of Terms

By creating an account, accessing, or using the Service, you agree to these Terms and all applicable laws and regulations. Your use of AI-powered features, including the Style-Parse(TM) Engine, constitutes acceptance of these Terms.

If you do not agree, you must discontinue use of the Service immediately. We may modify these Terms from time to time. Material changes will be communicated through the Service, by email, or by other reasonable means. Continued use following updated Terms constitutes acceptance of the revised Terms.

3. Eligibility and Parental Consent

You must be at least 13 years old to use the Service. If you are under 18, you represent that you have permission from a parent or legal guardian to use the Service and that they have reviewed and agreed to these Terms on your behalf.

If K Scan AI determines that additional parental consent or age verification is required under applicable law or platform policy, we may request proof of age or consent before account activation or continued use. We may suspend or delete accounts where required consent is not provided.

You may not use the Service if prohibited by applicable law or if you have previously been banned from the Service.

4. User Accounts and Security

Certain features may require account registration. You agree to:

- Provide accurate, complete, and current information.
- Maintain updated account information.
- Keep credentials confidential.
- Accept responsibility for activity under your account.
- Notify K Scan AI promptly of unauthorized access or security incidents.

K Scan AI is not responsible for losses arising from unauthorized account use caused by your failure to safeguard credentials.

5. Privacy and Data Processing

Your use of the Service is governed by our Privacy Policy, which is incorporated into these Terms by reference. By using the Service, you acknowledge that:

- Uploaded images may be processed by artificial intelligence systems.
- Content may be temporarily cached, stored, analyzed, or transformed to provide functionality.
- Scan data may be processed locally where possible or through encrypted cloud systems when needed.
- Third-party infrastructure providers may assist in delivering AI functionality.
- Anonymized or aggregated data may be used to improve platform performance and machine-learning systems.

K Scan AI is not a facial-recognition platform and does not use uploaded content to identify individuals or infer biometric identity.

Data Retention and User Deletion Rights

To align with our Privacy Policy, scan data is processed transiently and is not stored long-term unless required for product functionality, user-directed saving, service improvement, security, or legal compliance. Personal data retention and deletion rights are described in the Privacy Policy. Users may request access, deletion, correction, or export where required by applicable law.

Users should not upload government identification, financial records, medical information, confidential documents, or content they do not have the legal right to use.

6. AI Processing and Machine Learning Systems

K Scan AI uses proprietary and third-party artificial intelligence systems, multimodal models, machine-learning technologies, computer vision architectures, and recommendation systems. You acknowledge that:

- AI Outputs are probabilistic and may contain inaccuracies or incomplete information.
- Visually similar results may not represent exact product matches.
- Product pricing, brand identification, retailer availability, and fit recommendations may be inaccurate or change.
- AI Outputs do not constitute professional advice or guarantees.
- Outputs are generated algorithmically and may differ between sessions.
- K Scan AI may improve, retrain, refine, or modify AI systems without notice.

You are solely responsible for evaluating AI Outputs before relying on them for purchasing, styling, or other decisions.

7. Visual Commerce Disclaimer and Product Liability

K Scan AI operates as a visual-commerce discovery platform. K Scan AI does not manufacture, inspect, authenticate, warehouse, endorse, or guarantee products displayed through the Service.

K Scan AI does not guarantee:

- Authenticity or originality of products.
- Pricing accuracy or current availability.
- Retailer legitimacy or seller authenticity.
- Product quality, legality, or safety.
- Sizing accuracy or visual similarity accuracy.
- Shipping, fulfillment, or transaction performance.

Counterfeit Risk and Authentication Limits

K Scan AI does not authenticate products, verify seller legitimacy, or guarantee that identified products are genuine or original. Users are responsible for conducting due diligence on retailers and verifying product authenticity before purchase. K Scan AI is not liable for counterfeit goods, inauthentic items, fraud by third-party retailers, or losses arising from third-party transactions.

All purchases, returns, disputes, warranties, and transactions involving third-party retailers are solely between you and the applicable retailer.

8. User Content and AI Processing License

You retain ownership of your User Content. By uploading User Content, you grant K Scan AI a limited, non-exclusive, worldwide, royalty-free license to host, process, analyze, reproduce, display, transform, and transmit your content solely for:

- Operating the Service.
- Generating AI Outputs.
- Improving platform functionality.
- Moderation and safety.
- Evaluating or improving machine-learning systems using anonymized, aggregated, or de-identified information where appropriate.

K Scan AI does not claim ownership of your uploaded images or original content, and you may delete your content subject to applicable retention, security, and legal requirements described in the Privacy Policy.

9. Proprietary Technology and Intellectual Property

The Service contains proprietary software, AI systems, recommendation engines, visual-analysis systems, model workflows, interface systems, graphics, trade dress, styling methodologies, and machine-learning technologies owned by K Scan AI or its licensors. Protected intellectual property includes:

- The Style-Parse(TM) Engine.
- Recommendation and routing systems.
- Embeddings, model workflows, and commerce-routing logic.
- Interface architecture, styling taxonomies, and mobile interaction systems.
- Visual design elements, animations, layouts, branding systems, and platform trade dress.

No ownership rights are transferred to users. All rights not expressly granted are reserved by K Scan AI.

10. Limited License and Acceptable Use

Subject to compliance with these Terms, K Scan AI grants you a limited, revocable, non-exclusive, non-transferable license to access and use the Service for personal, non-commercial use. You may not:

- Reverse engineer, decompile, or disassemble the Service.
- Scrape data, outputs, embeddings, or model behavior.
- Benchmark the AI without authorization.
- Use automated systems, bots, or scripts to replicate functionality.
- Use outputs to train competing AI systems.
- Bypass rate limits or access restrictions.
- Interfere with platform security or infrastructure.
- Attempt prompt injection, adversarial attacks, or unauthorized testing.
- Transmit malware, viruses, or harmful code.
- Exploit the Service for unlawful purposes.

Violation of these restrictions may result in account termination and legal action.

11. Community Guidelines and Acceptable Use

You agree not to:

- Upload unlawful, infringing, counterfeit, harmful, abusive, hateful, discriminatory, sexually explicit, or exploitative content.
- Impersonate others or engage in deceptive practices.
- Attempt unauthorized access to systems.
- Harass, abuse, or harm other users.
- Violate applicable laws or regulations.

K Scan AI may remove content, suspend access, or terminate accounts at its discretion for violations.

12. Beta and Experimental Features

Certain features may be designated as beta, experimental, preview, or early access. Beta Features may contain bugs, experience interruptions, produce inaccurate results, change substantially, or be discontinued at any time.

Beta Features are provided strictly on an "AS IS" basis without warranties and are not covered by service level agreements, support commitments, or uptime guarantees. Use of Beta Features is at your risk.

13. Subscriptions, Payments, and Monetization

Certain portions of the Service may require payment, subscription enrollment, in-app purchases, or participation in promotional programs. K Scan AI may introduce subscription tiers, modify pricing, discontinue features, change monetization models, revoke promotional offers, or restrict premium functionality.

Subscriptions purchased directly through K Scan AI are non-refundable unless required by law. Purchases through Apple App Store or Google Play are subject to those platforms' refund policies and app-store terms. K Scan AI may suspend premium access following refunds or payment failure.

14. Third-Party Links and Retail Partners

The Service may contain links to third-party retailers, marketplaces, advertisers, or websites. K Scan AI does not control, operate, or endorse third-party sites and is not responsible for:

- Content accuracy, pricing, or product descriptions.
- Retailer policies, legitimacy, or authentication.
- Product authenticity, quality, or legality.
- Fulfillment, shipping, or transaction disputes.
- External privacy practices, security, or content.

Your interactions with third parties are solely between you and the applicable third party. Review retailer terms and policies before purchasing.

15. Cookies, Tracking, and Analytics

K Scan AI may use cookies, SDKs, analytics tools, device identifiers, and similar technologies to authenticate users, maintain sessions, improve performance, analyze traffic and usage patterns, support communications, and debug functionality. Detailed cookie and tracking information is provided in our Privacy Policy.

You may manage cookie preferences through browser or device settings and, where available, a consent tool. Opting out of non-essential cookies may limit some functionality.

16. AI Transparency and System Improvements

AI Outputs are generated algorithmically and may be incomplete or inaccurate. Visual similarity does not guarantee identical products. AI systems may evolve, be retrained, or be modified over time. Outputs may differ between sessions or users.

K Scan AI may use licensed data, publicly available information, synthetic data, and user-authorized inputs to improve systems, subject to the Privacy Policy and applicable law.

17. DMCA and Copyright Policy

K Scan AI respects intellectual property rights. If you believe content on the Service infringes your copyright, submit a DMCA notice that includes identification of the copyrighted work, identification of allegedly infringing material, your contact information, a good-faith statement, and a statement under penalty of perjury.

DMCA notices may be sent to K Scan AI Legal at legal@kscan.app.

18. Disclaimer of Warranties

THE SERVICE IS PROVIDED "AS IS" AND "AS AVAILABLE." TO THE MAXIMUM EXTENT PERMITTED BY LAW, K SCAN AI DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, ACCURACY, AND AVAILABILITY.

K Scan AI does not warrant that the Service will be uninterrupted, secure, error-free, accurate, complete, virus-free, or that third-party integrations will function as expected. Some jurisdictions do not allow limitations of implied warranties, so this disclaimer may not apply in full.

19. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, K SCAN AI SHALL NOT BE LIABLE FOR INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, EXEMPLARY, OR PUNITIVE DAMAGES; LOSS OF PROFITS, DATA, OR BUSINESS INTERRUPTION; RELIANCE ON AI OUTPUTS OR VISUAL SEARCH RESULTS; COUNTERFEIT PRODUCTS OR THIRD-PARTY FRAUD; OR TRANSACTIONS OR DISPUTES WITH RETAIL PARTNERS.

K Scan AI's total liability for any claim shall not exceed the greater of amounts paid by you to K Scan AI in the preceding 12 months or \$100 USD. Some jurisdictions do not allow limitation of liability, so this cap may not apply in full.

20. Indemnification

You agree to defend, indemnify, and hold harmless K Scan AI, its officers, directors, employees, contractors, and affiliates from claims, damages, losses, liabilities, costs, and expenses, including reasonable attorney fees, arising from your use of the Service, User Content, violation of these Terms, violation of third-party rights, or violation of applicable law.

21. Termination and Account Suspension

K Scan AI may suspend or terminate access at any time for Terms violations, suspected abuse, fraud, unlawful activity, security concerns, payment failures, operational reasons, or policy violations. Upon termination, your right to use the Service immediately ceases. Data may be retained in accordance with applicable law and the Privacy Policy.

22. Governing Law and Dispute Resolution

Governing Law

These Terms are governed by the laws of the State of Ohio, United States, without regard to conflict-of-law principles. For EU or UK users, mandatory consumer protections in your country of residence may also apply.

Binding Arbitration

PLEASE READ THIS SECTION CAREFULLY. It affects your legal rights. Any dispute arising out of or relating to these Terms or the Service shall be resolved through binding individual arbitration administered by the American Arbitration Association (AAA) under its Consumer Arbitration Rules, unless an exception below applies.

Arbitration may occur in Cleveland, Ohio, by telephone, video conference, or online where mutually agreed. Either party may bring eligible claims in small claims court on an individual basis.

Class Action Waiver

To the fullest extent permitted by law, you and K Scan AI agree to bring claims only in an individual capacity and not as a plaintiff or class member in any class, collective, consolidated, or representative proceeding.

Arbitration Opt-Out

You may opt out of arbitration by sending written notice within 30 days of first agreeing to these Terms. Include your full name, account email, and the statement: "I reject the arbitration agreement in Section 22 of the K Scan AI Terms and Conditions." Send the notice to legal@kscan.app with the subject line "Arbitration Opt-Out."

Court Jurisdiction

If you opt out of arbitration, if arbitration is unenforceable, or for small claims matters, you and K Scan AI agree to the exclusive jurisdiction and venue of state or federal courts in Cuyahoga County, Ohio, subject to mandatory consumer protections that may apply outside the United States.

Informal Resolution

Before starting arbitration or court proceedings, you agree to contact K Scan AI at legal@kscan.app with a written description of the dispute and proposed resolution. We will have 30 days to attempt informal resolution.

23. App Store Terms

If you download the app through Apple App Store or Google Play, those platforms are not parties to these Terms and are not responsible for support, maintenance, or updates. Your use must comply with applicable app-store terms and policies. In case of conflict, app-store terms govern app distribution and in-app purchases; these Terms govern the Service itself.

24. Force Majeure

K Scan AI shall not be liable for delays or failures caused by events beyond its reasonable control, including internet outages, infrastructure failures, cyberattacks, governmental actions, regulatory changes, labor disputes, natural disasters, pandemics, or third-party service interruptions.

25. Future Enterprise and API Services

K Scan AI may offer enterprise integrations, APIs, retailer tools, or commercial services subject to separate agreements, including Data Processing Addendums. API access, if provided, is non-public and may be rate-limited, deprecated, revoked, or subject to separate paid licenses and additional terms.

Enterprise customers must comply with additional privacy, security, audit, retention, and compliance obligations specified in their agreements.

26. Accessibility and Localization

K Scan AI is committed to digital accessibility and aims to support WCAG 2.1 Level AA accessibility principles. If you encounter accessibility barriers, contact legal@kscan.app.

These Terms are provided in English. Any translations are for convenience only; the English version controls in case of conflict.

27. Miscellaneous

Entire Agreement

These Terms, together with the Privacy Policy, constitute the entire agreement between you and K Scan AI regarding the Service and supersede prior understandings.

Severability

If any provision is found invalid or unenforceable, that provision will be severed and the remaining provisions remain in effect.

Waiver

Failure to enforce any provision does not constitute a waiver.

Assignment

You may not assign these Terms without K Scan AI's prior written consent. K Scan AI may assign these Terms in connection with corporate transactions or to affiliates.

No Third-Party Beneficiaries

These Terms are intended for the benefit of you and K Scan AI only.

Survival

Sections concerning intellectual property, indemnification, limitations of liability, disclaimers, dispute resolution, and governing law survive termination.

28. Notice to California Residents

California residents may have rights under the California Consumer Privacy Act and California Privacy Rights Act, including rights to know, access, delete, correct, opt out of sale or sharing, limit certain sensitive personal information uses, and non-discrimination. K Scan AI does not sell personal information and does not share personal information for cross-context behavioral advertising, as described in the Privacy Policy.

Submit verifiable consumer requests to kscanai.app@gmail.com We will respond within the time required by applicable law.

California's "Shine the Light" law permits residents to request information about certain third-party direct marketing disclosures. K Scan AI does not share your information for third-party direct marketing.

29. Contact Information

For legal notices, copyright matters, accessibility accommodations, or other inquiries, contact:

K Scan AI Legal & Support

Email: kscanai.app@gmail.com

Mailing Address: Oklahoma

Website: <https://kscan.app/>

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